Order QR

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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 09-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 26220 of 2026

CNR: {HCMA012161402026}

Yuvaraj

..Petitioner(s)

Vs

Case QR

The State Rep by
The Inspector of Police
PEW Gummidipoondi,
Tiruvallur District.
Crime No.120/2025.

..Respondent(s)

PRAYER: This criminal original petition filed under Section 482 BNSS Act to enlarge the petitioner on bail in CC No.597 of 2026 in connection to the Crime No.120 of 2025 pending on the file of the II Additional Special Judge under NDPS Act Cases at Chennai.

For Petitioner(s): Mr.P.Muthamizhselvakumar

For Respondent(s): Mr.M.M.I.Khaleel
Government Advocate (Crl.Side)

ORDER

This is a petition for bail in a case under the NDPS Act ("the Act"), filed under Section 483 of the BNSS. The petitioner is the fifth accused in Crime No.120 of 2025 on the file of the Inspector of Police, Prohibition Enforcement Wing, Gummidipoondi, Tiruvallur District, now pending as **C.C.No.597 of 2026** on the file of the II Additional Special Court for Exclusive Trial of Cases

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under the NDPS Act, Chennai. The offences charged are under Sections 8(c) read with 20(b)(ii)(C), 25 and 29(1) of the Act.

2. On 09.10.2025 at about 09.00 hours, the respondent police stopped an Ashok Leyland lorry bearing registration No.TN 52 AB 8935 at the Elavur check post on the road from Andhra Pradesh to Chennai. In the tool box behind the driver's seat they found 50 bundles packed in three sacks, each of about 2 kilograms, in all about **100 kilograms of ganja**. The ganja, the lorry and three mobile phones were seized under a mahazar at 10.00 hours, and the three men in the lorry, Dhanasekaran (A1), Mohanraj (A2) and Rajeshkumar @ Siva (A3), were arrested. The chemical analysis found cannabinoids in the samples. The petitioner was not in the lorry and nothing was seized from him. His name comes in the confession statements of A1 and A2 recorded the same day. According to them, Siva of Brahmapur, Odisha (A4), supplied the ganja, and directed that a part of it be handed over to the petitioner, a resident of Chinna Natham village near Gummidipoondi, and the larger part to Ramana of Madurai (A6). They also say that on two earlier trips in the same year they had delivered ganja to the petitioner at Naidupeta in Andhra Pradesh. A mobile number, 8939861125, is shown against the petitioner in the first information report and in the final report.

3. The whole seizure of about **100 kilograms of Ganja**is commercial quantity. The share said to have been meant for the petitioner is not stated uniformly. A1's confession speaks of "10 kilo bundles"; A2's confession speaks

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of 10 bundles containing 20 kilograms; the final report in Charge Sheet No.FR-0004/2026 dated 02.04.2026 puts it at 10 kilograms; and the counter affidavit, in paragraph 2, at "10 bundles weighing 20 kg". On either figure the share is not greater than 20 kilograms. By itself it would be an intermediate quantity.

4. The final report was laid on 02.04.2026. It showed the petitioner, along with A4 and A6, as absconding. The case was taken on file on 06.04.2026. The petitioner surrendered before the Special Court on **16.04.2026** and was remanded to judicial custody. He has been in custody since then. The case is now at the stage of evidence, and according to the counter affidavit it stands posted to 12.10.2026 for that purpose. This is the first petition of the petitioner before this Court. None of the co-accused is shown to have been enlarged on bail.

5. The learned counsel for the petitioner submitted that the petitioner was not at the spot, was not apprehended there, and that no ganja, money, vehicle or other article was recovered from him or at his instance. The only material against him is the confession statements of A1 to A3 and the call records. A confession to a police officer is inadmissible, and without independent material it cannot keep a man in prison. The petitioner surrendered on his own, which shows his bona fides. The investigation is over and nothing further is to be recovered from him. In paragraph 8 of the petition it is stated that *"The Petitioner has no other criminal case pending against him and is not required*

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in any other case." Reliance was placed on **Mallikarjun v. State of Karnataka, SLP (Crl.) No.3341 of 2023, dated 22.01.2024**; **Ragini Dwivedi @ Gini @ Rags v. State of Karnataka, 2021 SCC OnLine SC 174**; **Irshad v. State, Crl.O.P.No.27634 of 2024, dated 20.11.2024**; **Abdul Hameed v. State, Crl.O.P.No.21315 of 2022, dated 12.09.2022**, affirmed by the Supreme Court on 06.02.2024; **State (by NCB), Bengaluru v. Pallulabid Ahmad Arimutta, (2022) 12 SCC 633**; and **Abdul Rab v. Narcotics Control Bureau, 2025 SCC OnLine Del 293**.

6. The learned Government Advocate (Criminal Side), on the strength of the counter affidavit of the Inspector of Police, opposed the petition. The quantity is commercial and Section 37 of the Act applies. The surrender was made only after the charge sheet was filed, to avoid custodial interrogation. The averment that the petitioner has no other case is false. Paragraph 5 of the counter sets out eight earlier cases against him, four of them under the Act. If released, he is likely to abscond, to tamper with the evidence and to return to the trade.

7. I have considered the rival submissions and perused the material placed before me.

8. The first question is whether Section 37 of the Act governs this petitioner at all. This is not a case of separate recoveries being added together. There was one consignment, in one tool box, seized under one mahazar. But the petitioner is not said to have been in possession of any part of it. The whole of

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the 100 kilograms can be put to his account only through Section 29, on the footing that he was party to a conspiracy for the entire consignment and not merely the intended buyer of his share. For that, the material placed before me consists of the confession statements of A1 and A2. A confessional statement recorded by an officer under the Act is inadmissible at the trial, as held in **Tofan Singh v. State of Tamil Nadu, (2021) 4 SCC 1**, and such statements cannot by themselves form the basis for refusing bail, as held in **Pallulabid Ahmad Arimutta (cited supra)**. Nothing placed before me shows that the call details of the number attributed to the petitioner have been collected, and none of the eight witnesses listed in the final report is an officer of a service provider. Whether the petitioner was a party to the larger agreement is a question for the trial. I do not propose to rest this order on Section 37. I shall take the case on the footing most favourable to the petitioner: that only his share is to be put to his account, that it is an intermediate quantity, and that the petition is to be decided on the ordinary principles that govern bail.

9. Those principles are settled. The Court considers, among other things, whether there is a prima facie case, the nature and gravity of the accusation, the severity of the punishment on conviction, the danger of the accused absconding, his character and antecedents, and the likelihood of the offence being repeated, as held in **Prasanta Kumar Sarkar v. Ashis Chatterjee, (2010) 14 SCC 496**. Where antecedents are placed before the Court in a narcotics case, they must be considered, and a court should be slow to grant even regular bail where the

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quantity is large and the accused has criminal antecedents, as held in **State by the Inspector of Police v. B. Ramu, 2024 INSC 114**.

10. I accept that the material connecting the petitioner with this consignment is thin. It is the word of the co-accused, recorded by the police, and a mobile number. Were that the whole of the case, the petition would stand on a different footing. It is not the whole of the case. Paragraph 5 of the counter affidavit sets out the petitioner's earlier cases by police station, crime number, sections and stage. Four of them are under the Act. Crime No.46 of 2022 of Arambakkam Police Station, under Sections 8(c) read with 20(b)(ii)(C), 25 and 29(1) of the Act, involving a commercial quantity, is pending trial. Crime No.97 of 2022 of the same station, under Sections 8(c) read with 20(b)(ii)(B) of the Act, has been charge-sheeted. Crime No.530 of 2024, under Sections 8(c) read with 20(b)(ii)(A) of the Act, Section 25(1A) of the Arms Act and Sections 132, 296(b) and 351(3) of the BNS, has been charge-sheeted. Crime No.537 of 2023, under Sections 8(c) read with 20(b)(ii)(B) of the Act and Section 328 IPC, is stated to be under investigation. Besides these, there is a charge-sheeted case of attempt to robbery under Section 393 IPC in Crime No.109 of 2021 of SIPCOT Police Station, and three other cases. These are particulars, not a description. I give little weight to the cases still under investigation. Even leaving them out, three cases under the Act have reached the stage of final report, one of them for a commercial quantity, and the present case is the fourth such case in which the

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petitioner is charge-sheeted. Nothing was placed before me to dispute these particulars.

11. Against this record, the petitioner swore in paragraph 8 of his petition that he has no other criminal case. That statement is not correct. A court considering bail under a special statute cannot act on a statement of the accused's record which the papers before it contradict, as held in **State of Punjab v. Sukhwinder Singh @ Gora, (2026) 7 SCC 513 : 2026 SCC OnLine SC 671**. The incorrect averment also takes away the weight of the petitioner's assurance that he will abide by any condition.

12. The surrender does not help the petitioner as much as he claims. He was named in the first information report on 09.10.2025. The final report of 02.04.2026 records him as absconding. He appeared before the Special Court only on 16.04.2026, ten days after the case was taken on file. I do not accept the counter affidavit's reading of his motive, which is a matter of inference. But a surrender six months after being named is not a circumstance that tells in his favour.

13. The decisions cited for the petitioner do not assist him on these facts. **Mallikarjun (cited supra)**, as presented, concerned separate seizures made on different dates; here there is one seizure, and I have not aggregated anything against the petitioner. **Ragini Dwivedi (cited supra)** turned on a case of consumption to which Section 27 of the Act applied; no such case is put forward here. In **Irshad (cited supra)**, this Court granted bail noting, in

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paragraph 6, that there was no previous case pending against the petitioner there. **Abdul Hameed (cited supra)**, as described in the petition, was a case of a non-commercial quantity with no other material; it does not speak to an accused with this record. **Pallulabid Ahmad Arimutta (cited supra)** was a petition for cancellation of bail already granted, and I have applied the principle it states on confessions. **Abdul Rab (cited supra)** is a decision of the Delhi High Court, persuasive only, on the insufficiency of call records; that is not the ground on which this petition fails.

14. Taking the case on the footing most favourable to the petitioner, I find a real likelihood of the offence being repeated if he is released. He faces three charge-sheeted cases under the Act besides this one, he did not disclose any of them, and he did not come before the Court until six months after he was named. The period of custody, a little under six months, is not long for an offence of this nature, and the trial has reached the stage of evidence. If Section 37 of the Act were to govern, the position would be no better for him. The twin conditions under Section 37(1)(b)(ii) are cumulative, as held in **Sukhwinder Singh @ Gora (cited supra)**, and on this record I could not be satisfied that he is not likely to commit any offence while on bail.

15.The observations made in this order are confined to the consideration of this petition for bail. They shall not influence the trial, where the evidence, including the question whether the petitioner was a party to a conspiracy covering the whole consignment, will be appreciated on its own merits.

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16. **In the result, this Criminal Original Petition is dismissed.**

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Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
sms

To

1.II Additional Special Judge under NDPS Act Cases
Chennai.

2.The Superintendent of Police
Central Prison, Puzhal – II.

3.The Inspector of Police,
PEW Gummidipoondi,
Tiruvallur District.

4.The Public Prosecutor
High Court, Madras.

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N.RAMESH, J.

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